

## 25PSCV00424 25PSCV00424

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-21

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Case Number: 25PSCV00424 Hearing Date: July 21, 2026 Dept: 6

### CASE

NAME: Devonte

Lee v. FCA US, LLC, et al.

### Defendant

FCA US, LLC's Motion to Dismiss Plaintiff's Complaint for Failure to Amend

### TENTATIVE

### RULING

The Court GRANTS Defendant FCA US, LLC's Motion to Dismiss Plaintiff's Complaint for Failure to Amend. The Court hereby DISMISSES Plaintiff's Complaint filed on February 6, 2025, as to Defendant FCA US, LLC with prejudice. The Court directs Defendant FCA US, LLC to submit a proposed judgment of dismissal for the Court's review and signature within five calendar days of this order.

Defendant FCA US, LLC is ordered to give notice of the Court's ruling within five calendar days of this order.

### BACKGROUND

This is a lemon law case. On February 6, 2025, plaintiff Devonte Lee (Plaintiff) filed this action against defendants FCA US LLC (FCA), Envision Chrysler Dodge Jeep Ram of West Covina (Dealership) (collectively, Defendants) and Does 1 through 10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2, violation of subdivision (a)(3) of Civil Code section 1793.2,

breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement concealment.

On June 25, 2026, FCA moved to dismiss Plaintiff's Complaint for failure to amend. Plaintiff did not oppose the Motion.

## LEGAL STANDARD

(f)

The court may dismiss the complaint as to that defendant when:

...

(2)

Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.

(Code Civ.  
Proc., § 581, subd. (f)(2).)

## DISCUSSION

FCA seeks dismissal of Plaintiff's Complaint based on Plaintiff's failure to amend the Complaint following the Court's granting of FCA's motion for judgment on the pleadings on March 25, 2026, as to the First, Second, Third, Fifth, and Sixth Causes of Action with 20 days' leave to amend. FCA indicates having given notice of the Court's ruling on March 26, 2026, thus giving Plaintiff until April 15, 2026, to file an amended pleading, but Plaintiff has failed to amend the Complaint.

The Court finds FCA's Motion well taken. The Court granted FCA's motion for judgment on the pleadings as to the First, Second, Third, Fifth, and Sixth Causes of Action of Plaintiff's Complaint on March 25, 2026, and gave Plaintiff 20 days' leave to amend. (Order re: Court Ruling (3/25/26).) FCA gave notice of the Court's ruling on March 26, 2026. (Notice of Ruling (3/26/26).) Plaintiff has not filed an amended complaint as of this ruling and has not requested any extension. The Court further construes Plaintiff's lack of opposition as a concession that FCA's arguments are meritorious. (D.I.

Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4  
[where nonmoving party fails to oppose a ground for a motion, "it is  
assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion.

#### CONCLUSION

The Court GRANTS Defendant FCA US, LLC's Motion to Dismiss  
Plaintiff's Complaint for Failure to Amend. The Court hereby DISMISSES  
Plaintiff's Complaint filed on February 6, 2025, as to Defendant FCA US, LLC  
with prejudice. The Court directs Defendant FCA US, LLC to submit a proposed  
judgment of dismissal for the Court's review and signature within five calendar  
days of this order.

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